

I. Request

1. On July 27, 2023, the Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPd) to issue an opinion on the Draft Decree-Law 227/XXIII/20232, which establishes the regime for the dispensing of medications in proximity.

2. The CNPD issues this opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, as conferred by paragraph c) of no. 1 of article 57, paragraph b) of no. 3 of article 58, and no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (GDPR), in conjunction with the provisions of article 3, no. 2 of article 4, and paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

i)

The legal framework of the Draft

3. The Draft Decree-Law aims to establish a “[...] regime for the proximity dispensing of medications and other products prescribed for outpatient hospital care, within the scope of the establishments and services of the National Health Service (SNS), which is responsible for ensuring the provision of hospital care.” (article 1), allowing “... the access of the user to medications in locations closer to their residence, ...” (article 2).

4. The regime for the proximity dispensing of medications involves the intervention of various entities in the medication circuit, namely wholesalers of human-use medications and community pharmacies, in coordination with the pharmaceutical services and functional units of the Health Center Groupings and the Common Use Hospitals Service, as indicated in the Preamble of the diploma.

ii) The implementation of the medication dispensing regime

5. Article 11, titled “Information and Monitoring System,” states: “The circuit for the dispensing of medications in proximity is supported by a technological system that allows for the shared registration among the healthcare professionals of the clinical information of the user necessary for the purposes provided for in this decree-law, without prejudice to compliance with the rules regarding the protection of personal data.”

6. The system in question must ensure the traceability of the medication from prescription to dispensing and “must include mechanisms for recording and controlling the respective accesses.” (no. 2 of article 11), with the responsibility of the “Central Administration of the Health System, IP, (ACSS, IP), (the) INFARMED, IP, the Executive Directorate of the National Health Service, IP, the SUCH, and the SPMS, E.P.E,” to approve, within 90 days after the entry into force of the decree-law, the requirements of that technological system (no. 4 of article 11).

7. The technological system that allows for the shared registration among the healthcare professionals of the clinical information of the user necessary for the purposes provided for in the Draft Decree-Law, as well as the norms and technical specifications for the processing of personal data, are referred to in regulation (cf. articles 11 and 14 of the Draft).

iii) Data protection in the Draft Decree-Law

8. Article 12 of the Draft Decree-Law, titled “Protection of Personal Data,” begins with a principle statement that in the processing of personal data, including health data, necessary for the implementation and execution of the medication dispensing regime, the GDPR will be respected.

9. Specifically, regarding the processing of such data, the Draft diploma provides that the data shall be processed “under the responsibility of a healthcare professional, or by another person also subject to a confidentiality obligation” (no. 2), with the hospital unit responsible for the prescription being the entity responsible for the processing of personal data, and it is incumbent upon it to adopt the necessary measures to ensure that “... any individual who, acting under its authority or under the authority of the subcontractor, has access to those data only processes them according to its instructions, written or

verbal, and is covered by the duty of secrecy and confidentiality.” (no. 3).

10. Regarding the period of data retention, no. 4 of article 12 provides that the data processed under this regime shall be retained for the period that “... proves necessary for the pursuit of the purpose of the processing, which must be adequate and relevant.”

11. It is up to the user, upon verifying the necessary prerequisites for this purpose, to opt “expressly, in writing,” for the regime of in-person dispensing at the Hospital Pharmaceutical Services or for the proximity dispensing regime, and, in the latter case, to also choose the location of the dispensing, a decision that may be altered.

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requesting the cessation of their inclusion in the exemption regime in proximity or the alteration of the exemption location,

(article 6, no. 4 and no. 6, paragraphs a) and b), of the Draft Decree-Law).

12. This option is taken within the scope of an in-person hospital pharmaceutical consultation, during which clarifications and information regarding the processing of their personal data will be provided, (paragraph c) of no. 4 article 6 of the Draft)

iv) Data Protection Impact Assessment

13. Despite the obligation to instruct the request for an opinion to the CNPD with an impact study on the protection of personal data (cf. no. 4 of article 18 of Law no. 43/2004, amended by Law no. 58/2019, of August 8), the request was not accompanied by this instrument, which is not a mere formality, but rather an essential mechanism to understand and mitigate the impact that processing has on the personal data of the data subjects.

14. With the Draft diploma in question, the intervention of community pharmacies in the dispensing of medications, usually dispensed in a hospital setting, is introduced, but nothing is mentioned about the personal data of users that will be transmitted/shared with these entities, which are generally private in nature, which is important to address in respect of the principles enshrined in the GDPR.

15. The CNPD cannot, to that extent, express an opinion on the processing, namely on whether the principles of minimization, purpose, accuracy, and timeliness of the personal data of the user are respected.

16. It is noted that the user's option to adhere to the regime to be implemented cannot be confused with consent for the processing of personal data, as this would imply implicit consent, which does not meet the requirements of the GDPR (cf. paragraph 11 of article 4 and article 7 of the GDPR).

17. The Regulation provided for in article 14 of the Draft, which will define the operations of processing personal data as well as the respective technical conditions, will be the instrument that will allow the CNPD to express an opinion on the processing of personal data legitimized by this Draft (cf. paragraph b) of no. 3 of article 58 of the GDPR, paragraph a) of no. 1 of article 6 of Law no. 58/2019, of August 8, and no. 4 of article 18 of Law no. 43/2004, of August 18).

2v.

### III. Conclusions

18. The legislator does not specify which personal data of users will be shared with the proximity entities that dispense medications in place of the Hospital Pharmacies, nor the information circuit, so the CNPD does not have sufficient elements to express an opinion on this matter.

19. The Regulation provided for in articles 11 and 14 of the Draft must be submitted to the CNPD, accompanied by the appropriate data protection impact study.

Approved at the meeting of August 16, 2023

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2023.08.16 21:00:28+01'00'

Certified by: Diário da República Eletrónico

Certified attributes: President - National Data Protection Commission